

Milind Kumar Singh vs The State Of Jharkhand on 11 December, 2023

Author: Sanjay Kumar Dwivedi

Bench: Sanjay Kumar Dwivedi

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Cr.M.P. No. 2

IN THE HIGH COURT OF JHARKHAND AT RANCHI

Cr.M.P. No. 2710 of 2013

Milind Kumar Singh

... Petitioner

-Versus-

1. The State of Jharkhand

2. Sheela Devi

... Opposite Parties

CORAM: HON'BLE MR. JUSTICE SANJAY KUMAR DWIVEDI

For the Petitioner

: Mr. Rupesh Singh, Advocate

For the State

: Mr. Santosh Kumar Shukla, A.P.P.

For O.P. No.2

: Ms. Archana Kumari, Advocate

09/11.12.2023 Heard Mr. Rupesh Singh, learned counsel for the petitioner,

Ms. Archana Kumari, learned counsel for opposite party no.2 and Mr. Santosh Kumar Shukla, learned counsel for the State.

2. This petition has been filed for quashing of the order dated 27.07.2013 passed in Criminal Execution Case No.12/2011 by the learned Principal Judge, Family Court, Dumka, whereby, the learned Principal Judge, Family Court, Dumka has been pleased to reject the petition filed by the petitioner under Section 127 of Cr.P.C. for an order of alteration of order of permanent maintenance to the extent of its complete seizure, granted to the opposite party no.2 vide order dated 25.08.2011 in Criminal Miscellaneous Case No.133 of 2005.

3. Mr. Rupesh Singh, learned counsel for the petitioner submits that the opposite party no.2 has filed Criminal Miscellaneous Case No.133 of 2005 against the petitioner before the learned Principal Judge, Family Court, Dumka under Section 125 of Cr.P.C. for grant of maintenance, stating inter alia that opposite party no.2 solemnized marriage with the petitioner on 26.06.1991 as per the Hindu customs and after lapse of some time, the petitioner along with his other family members started demanding dowry and torturing opposite party no.2 and refused to maintain her. He further submits that petitioner appeared in the said miscellaneous case and vide order dated 29.01.2007,

the learned Principal Judge, Family Court, Dumka directed the petitioner to pay a sum of Rs.2,000/- per month towards interim maintenance. He also submits that the learned Principal Judge, Family Court, Dumka vide order dated 25.08.2011 disposed of the said criminal miscellaneous case filed under Section 125 of Cr.P.C. allowing the same in favour of opposite party no.2 and directing the petitioner for a monthly maintenance of Rs.3,000/- from August, 2011 in favour of opposite party no.2. He submits that the petitioner challenged the said order in Criminal Revision No.759 of 2011, which is still pending before this Court. He further submits that the petitioner moved before the learned Principal Judge, Family Court, Munger in Title Suit (Matrimonial) No.97 of 2008 under Section 12(1)(a) and (b) of the Hindu Marriage Act for grant of decree of nullity. He submits that after issuing notice upon opposite party no.2, the learned Court has been pleased to fix the matter for ex parte and vide judgment dated 04.02.2013 and decree sealed and signed on 19.02.2013, the learned Principal Judge, Family Court, Munger has been pleased to allow the said Title Suit (Matrimonial) holding the marriage as null and void. He submits that in view of the judgment passed by the learned Principal Judge, Family Court, Munger declared the marriage as null and void, the petitioner filed a petition under Section 127 Cr.P.C. for alteration of the maintenance. He submits that the said order of decree has been challenged by opposite party no.2 before the Hon'ble Patna High Court, which is still pending. He submits that the Division Bench of the Hon'ble Patna High Court vide order dated 24.11.2023 directed the petitioner to show his bona fide towards settlement and pay a sum of Rs.5 Lakhs within a period of eight weeks from that day and the matter is fixed for 19.01.2024. He submits that in view of that, the case may kindly be adjourned till the disposal of the miscellaneous appeal before the Hon'ble Patna High Court. He further submits that in view of nullity, the impugned order passed by the learned Principal Judge, Family Court, Dumka is fit to be quashed. He submits that in view of the provision made in Section 11, 5(1)(i), 4 and 12 of the Hindu Marriage Act, 1956, the marriage in contravention of Section 5(1)(i) is void ab initio under Section 11 and Section 12 is inapplicable in such case and in view of that, opposite party no.2 is not entitled. To buttress this argument, he relied upon the judgment passed by the Hon'ble Supreme Court in the case of Yamunabai Anantrao Adhav v. Anantrao Shivram Adhav and another, reported in (1988) 1 SCC 530.

4. The said arguments of Mr. Rupesh Singh is being resisted by Ms. Archana Kumari, learned counsel for opposite party no.2 on the grounds that the marriage was solemnized on 26.06.1991 as per Hindu customs. She submits that just after the marriage, opposite party no.2 was being harassed by the petitioner and other family members and opposite party no.2 was forced to lodge a case under Section 498-A of the Indian Penal Code and Section 3/4 of the Dowry Prohibition Act. She submits that in the said case, the petitioner has faced the trial and vide judgment dated 14.08.2018 in G.R. No.1241 of 2015 (T.R. No.165 of 2018), the petitioner has been convicted. She submits that against that judgment, the petitioner preferred an appeal and that appeal is pending before the learned Sessions Judge, Dumka. She further submits that void order has been obtained by the petitioner by way of maneuvering the things and he has not disclosed about filing of the case at Dumka in the year 2005 for maintenance before the learned Principal Judge, Family Court, Dumka and in view of that, she submits that opposite party no.2 has not received any notice in the said matrimonial suit and ex parte order has been passed. She further submits that the said order has been challenged by opposite party no.2 before the Hon'ble Patna High Court, which is still pending. She also submits that the conduct of the petitioner is very strange from the very beginning. She

submits that in the case of maintenance, thrice the mediation took place. She submits that at the first instance, the petitioner agreed to pay the maintenance and the said promise was continued in the second mediation and finally in the third mediation, the petitioner turned down from his promise. She further submits that recently the Hon'ble Patna High Court vide order dated 24.11.2023 directed the petitioner to show his bona fide towards settlement and pay a sum of Rs.5 Lakhs to opposite party no.2, but till date, the said amount has not been paid. On these grounds, she submits that the petitioner's conduct is not good and in view of that, this petition may kindly be dismissed.

5. The Court has gone through the materials on record and finds that the maintenance case was filed by opposite party no.2 before the Dumka Court in the year 2005, however, the case was filed by the petitioner under the Hindu Marriage Act for declaration of marriage as null and void in the year 2008. It has been pointed out that in the said case, pendency of the maintenance case before Dumka Court was not disclosed by the petitioner. The petitioner is happened to be husband and in the criminal case filed under Section 498-A of the Indian Penal Code, he has been convicted and against that an appeal is filed which is pending.

6. Whatever has been recorded in the arguments of the learned counsel for opposite party no.2 suggest that the petitioner has maneuvered the things to obtain decree of void by the Court at Munger (Bihar) and appeal against that judgment filed by opposite party no.2 is pending.

7. It is clear that the appeal is in continuation of trial. Further, the Division Bench of the Hon'ble Patna High Court has recently vide order dated 24.11.2023 directed the petitioner to show his bona fide towards settlement by way of payment of Rs.5 Lakhs to opposite party no.2 and the matter has been posted on 19.01.2024. It has been pointed out that the said amount has not yet been paid to opposite party no.2. In view of these fact, it is crystal clear that the petitioner is playing with the Courts also.

8. The judgment relied by Mr. Rupesh Singh, learned counsel for the petitioner in the case of Yamunabai Anantrao Adhav (supra) is on different footing and the dispute was not there with regard to ex parte order as well as agreed for payment of maintenance at one time and denied the same at next time. Even the order passed by the Division Bench of the Hon'ble Patna High Court dated 24.11.2023 has also not yet been complied with. In view of that, the judgment relied by the learned counsel for the petitioner is not helping the petitioner.

9. In view of the above facts, reasons and analysis, no case of interference is made out. Accordingly, this petition is dismissed.

10. Interim order, if any granted by this Court, is vacated.

(Sanjay Kumar Dwivedi, J.) Ajay/